

JUBILEE LEGAL
Daniel "Sparky" Abraham (CSB No. 299193)
Email: sparky@jubilee.legal
300 E Esplanade Dr., Suite 900
Oxnard, CA 93036
Tel: (805) 946-0386
Fax: (805) 620-7834

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Superior Court of California,
County of Los Angeles
10/15/2024 2:44 PM
David W. Slayton,
Executive Officer/Clerk of Court,
By J. Riveros, Deputy Clerk

Attorney for Defendant DALTON C. GAUDIN

SUPERIOR COURT OF THE STATE OF CALIFORNIA
COUNTY OF LOS ANGELES
NORTH VALLEY DISTRICT – LIMITED JURISDICTION

STUDENT LOAN SOLUTIONS, LLC,

Plaintiff,

v.

DALTON C GAUDIN aka DALTON CALEB
GAUDIN and DOES 1 through 30, Inclusive,

Defendants.

Case No. 24CHLC00778

**DEFENDANT DALTON GAUDIN'S
ANSWER TO PLAINTIFF STUDENT
LOAN SOLUTIONS, LLC'S
UNVERIFIED COMPLAINT**

Complaint Filed: January 9, 2024

Defendant DALTON C. GAUDIN ("Defendant"), for his Answer to the Complaint filed
by STUDENT LOAN SOLUTIONS, LLC ("Plaintiff"), states as follows:

GENERAL DENIAL

Pursuant to Code of Civil Procedure section 431.30(d), Defendant denies, both generally
and specifically, each and every allegation, matter, or fact contained in Plaintiff's Complaint, and
further denies that Plaintiff has been injured or damaged in any sum whatsoever or is entitled to
any relief in any form, whether legal or equitable, from Defendant.

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1 **Tenth Affirmative Defense**

2 10. Plaintiff is barred from recovering due to Plaintiff's or Plaintiff's alleged
3 assignor's failure to comply with Civil Code section 1459.

4 **Eleventh Affirmative Defense**

5 11. Plaintiff does not have the legal capacity to sue.

6 **Twelfth Affirmative Defense**

7 12. The Complaint and causes of action alleged therein are barred by the statute of
8 limitations.

9 **Thirteenth Affirmative Defense**

10 13. Plaintiff, by its acts and omissions, has waived its right to accelerate the alleged
11 debt.

12 **Fourteenth Affirmative Defense**

13 14. Any amount of money deemed to be owing by Defendant is offset on account of
14 violations of the California Rosenthal Fair Debt Collection Practices Act, the California Fair Debt
15 Buying Practices Act, the Federal Fair Debt Collection Practices Act, the California Private
16 Student Loan Collections Reform Act, and/or the California Unfair Competition Law by Plaintiff,
17 its principals, and/or its agents and employees.

18 **Fifteenth Affirmative Defense**

19 15. The action is barred under the doctrine of unclean hands.

20 **Sixteenth Affirmative Defense**

21 16. The action is barred under the doctrine of unjust enrichment.

22 **Seventeenth Affirmative Defense**

23 17. Defendant presently has insufficient information or knowledge on which to form a
24 belief as to whether he may have additional affirmative defenses available. Defendant reserves
25 the right to assert additional affirmative defenses in the event discovery indicates that they would
26 be appropriate.

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1 WHEREFORE, Defendant respectfully requests that the Court enter judgment in his favor
2 and against Plaintiff. Defendant further requests an award of his costs and such other relief as the
3 Court deems appropriate.

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6 Dated: October 15, 2024

7 Respectfully submitted,

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10 By DANIEL "SPARKY" ABRAHAM
11 Attorney for the Defendant

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Los Angeles County Superior Court Case No. 24CHLC00778

My business address is 300 E Esplanade Dr. Suite 900, Oxnard, CA 93036. I am over the age of eighteen years and not a party to this action.

**DEFENDANT DALTON GAUDIN'S ANSWER TO PLAINTIFF STUDENT
LOAN SOLUTIONS, LLC'S UNVERIFIED COMPLAINT**

Attorney for Plaintiff

I declare under penalty of perjury under the laws of the United States and the State of California that the foregoing is true and correct.

D.A.

Daniel “Sparky” Abraham